

Function 2:

Facilitation and enforcement of travel

Result

Criterion: Delivery of services that facilitate status resolution of breaches of Portfolio legislation.⁸⁶

Met

Result: At 30 June 2016, the Department was engaged actively with 39,915 non-citizens resolving their status (27,474 IMA, 12,441 non-IMA). Of these, 37,795 were in the community on Bridging E visas (BVEs) (26,356 IMA, 11,439 non-IMA).

During 2015-16, 15,145 unlawful non-citizens commenced engagement with the Department to resolve their immigration status, including 11,205 who self-identified for status resolution.

In 2015-16, 14,013 non-IMAs resolved their status after engaging with the Department. Of these, 82 per cent left Australia and 18 per cent were granted substantive visas or citizenship.

Performance results for this criterion are also reported under PBS performance criterion 'Delivery of support services for non-citizens in the community' above.

Criterion: The management of non-compliance does not lead to an unacceptable increase in non-compliant activity.⁸⁷

Met

Result: During 2015-16, community status resolution officers (CSROs) engaged with a total of 44,180 people (including IMAs) who were living in the community as an alternative to detention. At 30 June 2016 CSROs were managing 37,795 people, an increase of 2 per cent compared with the 36,942 people being managed at 30 June 2015.

The effective management of non-citizens in the Australian community on BVEs has not led to an unacceptable increase in non-compliance with BVE conditions, with the percentage of BVE overstayers against relevant BVE grants remaining relatively stable at under 5 per cent in recent years.

A further measure of effective management of non-compliance is the number of unlawful non-citizens in the community, which was 62,000 at 30 June 2015 and was 64,600 at 30 June 2016, a slight increase of 4.2 per cent.

Criterion: Eligible IMAs are transferred to a regional processing centre (RPC) in a safe and timely manner.^{88, 89}

Met

Result: No new eligible IMAs were transferred to a regional processing country during 2015-16. Transitory persons who were in Australia from Nauru or Papua New Guinea (PNG) to receive medical treatment were returned in accordance with well-established processes and agreed administrative arrangements with regional processing countries.

⁸⁶ Deliverable from Programme 1.3 in the PBS 2015-16, p 51.

⁸⁷ KPI from Programme 1.3 in the PBS 2015-16, p 51. The second part of this criterion 'Employers voluntarily comply with their obligations to engage in legal work hire practices' is addressed separately under Corporate Plan performance.

⁸⁸ KPI from Programme 1.4 in the PBS 2015-16, p 52.

⁸⁹ The results for this criterion also address criterion 'Transfer of eligible IMAs to a Regional Processing Centre (RPC)' from Programme 1.4 in the PBS 2015-16, p 52.